

TENTATIVE RULING

Case: **Roth v. Simonis**
 Case No. CV2022-1935

Hearing Date: **May 28, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiff John Roth’s motion to reopen discovery is **DENIED**. (Code Civ. Proc., § 2024.050.) In exercising its discretion to grant or deny defendant’s motion, this Court considers the factors enumerated in section 2024.050(b). (See *Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc.* (2008) 165 Cal.App.4th 1568, 1586–1587.) First, while plaintiff has articulated the necessity and reasons for the outstanding discovery, he has not shown that he was diligent in pursuing this discovery and does not provide adequate reasons as to why the discovery was not completed earlier. (Code Civ. Proc., § 2024.050, subds. (b)(1), (2); Carlock decl., ¶¶ 3-4 & 8-16, Exhibits 1-3.) Second, defendant Alan P. Simonis will be significantly prejudiced if the Court reopens discovery. (Code Civ. Proc., § 2024.050, subd. (b)(3); Barth decl., ¶ 9; see also Carlock decl., ¶ 15.) Finally, the Court finds that a significant amount of time has elapsed between the initial trial date (March 11, 2024) and the future trial date. (Code Civ. Proc., § 2024.050, subd. (b)(4); Carlock decl., ¶¶ 3, 6.)

Plaintiff’s request for sanctions is **DENIED**. (Code Civ. Proc., § 2024.050, subd. (c).) As the Court is denying plaintiff’s motion, defendant did not unsuccessfully oppose this motion. (*Ibid.*)

Defendant’s request for sanctions is **DENIED**. (Code Civ. Proc., § 2024.050, subd. (c).) While plaintiff unsuccessfully made this motion, the Court finds that he acted with substantial justification. (See Carlock decl., ¶¶ 4, 8-9, & 11, Exhibits 1-3.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Vicente v. Door System Design, Inc.**
Case No. CV2024-3180

Hearing Date: **May 28, 2026** **Department Fourteen** **9:00 a.m.**

Defendants Door System Design, Inc. and Jasen Bernard Blanchette’s motion to continue trial and all corresponding deadlines is **DENIED**. (Cal. Rules of Court, rule 3.1332.) Defendants have failed to make an affirmative showing of good cause requiring the continuance. (Cal. Rules of Court, rule 3.1332(a), (c).) Specifically, defendants have not established their “excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts” or a “significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.” (Cal. Rules of Court, rule 3.1332(c)(6), (7); see Goncharova decl.) First, while defendants assert that they need additional fact discovery related to plaintiff’s medical treatment for other car accidents, they have not shown that they were diligent in seeking to obtain such information and other identified discovery for the current trial date. (Goncharova decl., ¶¶ 5-8.) Second, although defendants state that their lead counsel is expected to be in trial during the current trial date, they provide insufficient information regarding the other case, such as the likelihood that the case will proceed as scheduled or whether counsel could request a continuance in the other case. (See *id.*, ¶ 10.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.